

4. 9:00 AM CASE NUMBER: C25-00147  
CASE NAME: JANE DOE VS. COUNTY OF CONTRA COSTA, A PUBLIC ENTITY  
JUDGMENT ON THE PLEADINGS  
FILED BY: COUNTY OF CONTRA COSTA, A PUBLIC ENTITY  
**\*TENTATIVE RULING:\***

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant County of Contra Costa ("Defendant"). The Motion argues that the first, second, and third causes of action fail and that the Court should grant the Motion without leave to amend.

For the reasons set forth below, the hearing on the Motion is continued until **Monday, November 2, 2026, at 9:00 a.m., in Department 34**. The parties shall meet and confer **by October 9, 2026**, and Defendant shall file the required "meet and confer" declaration showing compliance with Code of Civil Procedure section 439, subdivision (a), **by October 16, 2026**.

Code of Civil Procedure section 439, subdivision (a), requires the party intending to file a motion for judgment on the pleadings to meet and confer with the party whose pleading is being challenged "**in person, by telephone, or by video conference**" prior to filing the motion for judgment on the pleadings. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion "failed to respond to the meet and confer request of the moving party. . . ." *Id.* The moving party must then file a declaration with the motion attesting to the party's compliance with the meet and confer requirement. *Id.* Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. See *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 ("Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.")

Here, Defendant has not filed any declaration with the Motion that addresses the status or satisfaction of the meet and confer requirement. Accordingly, the Court finds that Defendant has made no effort to meet and confer in accordance with the law. The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

5. 9:00 AM CASE NUMBER: C25-00713  
CASE NAME: PRAVEEN GUPTA VS. THE VINTNER CONDOMINIUM HOMEOWNERS ASSOCIATION  
PRELIMINARY INJUNCTION  
FILED BY: GUPTA, PRAVEEN  
**\*TENTATIVE RULING:\***

Plaintiff filed his Second Motion for Preliminary Injunction on April 30, 2026 which was set for hearing on September 28, 2026. A prior motion was denied without prejudice to renewing the motion based on the current operative pleadings. See Order entered April 21, 2026. The renewed motion is based on the Second Amended Complaint. However, Plaintiff's operative complaint has again been superseded by an amended complaint. A Third Amendment Complaint was filed on September 8, 2026. Accordingly, the renewed motion is **DENIED**, again without prejudice.